

NONDISCLOSURE AND CONFIDENTIALITY AGREEMENT

This Nondisclosure and Confidentiality Agreement (the “Agreement”) is made and entered into on July 21, 2014, by Tiburon Lockers, Inc., a New Jersey Corporation with its principal place of business in Rockleigh, New Jersey (hereinafter the “Tiburon”), its subsidiaries and affiliates and Piter Garcia, an individual, with principal residences in Rochester NY and New York, NY (hereinafter the “Contractor”), with respect to the following facts:

- A. The parties hereto (referred to collectively as the “Parties” and individually as a “Party”) intend to engage in discussions concerning a potential business relationship (the “Proposed Relationship”).
- B. In connection with the Proposed Relationship, the Parties may disclose certain information and exchange for examination certain equipment and devices designed and manufactured by the respective Parties related to their respective operations or businesses (the “Information”).
- C. Each Party desires to protect the confidentiality of certain information that it may disclose to the other Party at any time whether or not the Parties enter into the Proposed Relationship.

NOW THEREFORE, in consideration of the foregoing promises and the mutual covenants herein contained, **THE PARTIES HERETO AGREE AS FOLLOWS:**

1. **Confidential Information.** “Confidential Information: means (a) any Information disclosed by or on behalf of one Party to the other Party, including, without limitation, (i) any ideas and information relating to strategy, design, operations, conversations, emails, faxes, electronic data, coding, logic, business model, opportunities, pricing, ownership, financial proformas directly or indirectly related to hardware, software, on-line services, or websites, that enable the identification of searchers, search and/or subjects that is confidential and proprietary, and all other non-public information, material, or data relating to the past, current, or future business or operations of the Tiburon and (ii) any information, material, or data provided by third party vendors of the Parties and (b) any analyses, compilations, studies, summaries, extracts, or other documentation prepared by the Contractor based on the Information disclosed or delivered by one of the Parties to the other. This agreement also expressly prohibits any dissemination of information regarding the Parties technologies, unless express consent is granted.

The Parties each acknowledge that neither the Tiburon or Contractor nor any of their respective representatives, officers, directors, employees, agents, contractors or controlling persons makes any express or implied representation or warranty as to the accuracy or completeness of any Confidential Information, and each Party agrees that none of such persons shall have any liability to the other or any of their representatives relating to or arising from its or their use of any Confidential Information or for any errors therein or omissions therefrom. The Parties each agrees that they are not entitled to rely on the accuracy or completeness of any Confidential Information and that it shall be entitled to rely solely on such representations and warranties regarding Confidential Information as may be made in any final transaction agreement

relating to the Proposed Relationship, subject to the terms and conditions of such agreement. The Parties acknowledge that the Tiburon and Contractor each owns any and all of its respective Confidential Information. Each acknowledges that in the event no ongoing agreement is reached between the Parties, that any Equipment and records exchanged as contemplated above shall be returned to the sending Party which will continue to own such items.

2. **Use and Disclosure of Confidential Information.**

Permitted Use and Disclosure. The Parties will not utilize any confidential information received from the other for any purpose other than for the benefit of the Parties in order to facilitate the transactions in which the Parties are involved by mutual written agreement. The Parties each agree that it will not utilize the Confidential Information provided to it by the other to compete with the other Party, nor will the Parties engage in reverse engineering of the other Party's Confidential Information or any other conduct that would directly or indirectly result in one Party misappropriating or improperly utilizing the rights, property, assets, or Confidential Information of the other Party. The Parties will maintain the confidentiality of such Confidential Information using at least the same degree of care customarily used by the Parties to protect its own Confidential Information, but under no circumstances will the Parties use less than a reasonable degree of care. Upon request by a Party, the other Party will return all Confidential Information and Equipment provided pursuant hereto.

General Exceptions. Notwithstanding any other provision of this Agreement, Information will not be or will cease to be Confidential Information (a) if such Information was already public knowledge at the time it was learned by a Party, or if such Information subsequently came into the public domain through no fault of the other Party, (b) if such Information was lawfully received by the a Party from a third party free of an obligation of confidence to such third party, (c) if such Information was already in the possession of the a Party prior to the receipt thereof, (d) if such Information is subsequently and independently developed by employees, consultants, or agents of the a Party without reference to the Confidential Information disclosed under this Agreement, or (e) if disclosure is required pursuant to the next paragraph of this Agreement.

Legal Exceptions. Notwithstanding any other provision of this Agreement, a Party may disclose any Information that is necessary or appropriate to disclose in order to comply with applicable laws, rules, and regulations or enable a Party to comply with this Agreement or which is required to be disclosed in a judicial or administrative proceeding after all reasonable legal remedies for maintaining such Information in confidence have been exhausted, including, but not limited to, giving the other Party as much advance notice of the possibility of such disclosure as practicable so the other Party may attempt to obtain a protective order concerning such disclosure.

3. **Term of Agreement.** This Agreement will commence on the date of execution and continue as long as the Confidential Information is considered competitively sensitive by the Tiburon.

4. **Injunctive Relief.** Each Party acknowledges that it would be impossible to quantify the financial harm to the other Party if there is a failure to comply with any covenants or

provisions of this Agreement, and agrees that in the event of any breach of any covenant and provisions, the other Party to this Agreement will not have an adequate remedy at law. It is therefore agreed that the Party to this Agreement who is entitled to the benefit of the covenants and provisions of this Agreement that have been breached, in addition to any other rights or remedies which it may have, will be entitled to immediate injunctive relief to enforce such covenants and provisions, and that in the event that any such action or proceeding is brought in equity to enforce them, the defaulting or breaching Party will not urge as a defense that there is an adequate remedy at law.

5. **Waivers.** If any Party at any time waives any rights hereunder resulting from any breach by the other Party of any of the provisions of this Agreement, such waiver is not to be construed as a continuing waiver of other breaches of the same or other provisions of this Agreement. Resort to any remedies referred to herein will not be construed as a waiver of any other rights and remedies to which such Party is entitled under this Agreement or otherwise.

6. **Successors and Assigns.** Each and every covenant and representation of this Agreement will inure to the benefit of and be binding upon each of the Parties, their personal representatives, assigns and other successors in interest. Except as expressly provided herein, neither Party will assign or delegate any of its respective rights or duties hereunder except as permitted or required under the laws of descent of New Jersey.

7. **Attorneys Fees.** In the event that either Party must resort to legal action in order to enforce the provisions of this Agreement or to defend such suit, the prevailing Party will be entitled to receive reimbursement from the non-prevailing Party for all reasonable attorneys' fees and all other costs incurred in commencing or defending such suit.

8. **Entire and Sole Agreement.** This Agreement constitutes the entire Agreement between the Parties and supersedes all agreements, representations, warranties, statements, promises and undertakings whether oral or written, with respect to the subject matter hereof. This Agreement may be modified only by a written agreement signed by both Parties.

9. **Governing Law.** This Agreement will be governed by and construed in accordance with the laws of the District of Columbia without regard to conflicts of law. The venue for any legal proceedings under this Agreement will be in the appropriate forum in the State of New Jersey.

10. **Severability.** If any term, provision, promise or condition of this Agreement is held by a court of competent jurisdiction to be void, invalid, inoperative or unenforceable, the other terms, provisions, promises and conditions hereof will remain in full force and effect and will in no way be affected, impaired or invalidated.

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement on the date first above indicated.

TIBURON LOCKERS, INC

PITER GARCIA

By: _____

By: _____

Print Name

Print Name

Print Title

Print Title

Date: _____